



CHAPTER clxvi.

An Act to confer further powers upon the Middlesex County Council in reference to the completion of the North Circular Road the acquisition of the Duke of Northumberland's River and other matters to enlarge the powers of the local authorities in the county and to make further provision for the health local government and improvement of the said county and for other purposes. A.D. 1930.

[1st August 1930.]

WHEREAS the county council of the administrative county of Middlesex are constructing a road known as "the North Circular Road" in that county and it is expedient to make provision as in this Act contained for constructing such road under the Grand Union Canal at Stonebridge Park in the borough of Ealing :

And whereas the most noble Alan Ian Duke of Northumberland K.G. (in this Act referred to as "the Duke" which expression shall include his successors in title) is or claims to be tenant for life in possession and estate owner of the Duke of Northumberland's River between Harmondsworth Point and the river Thames in the parishes of West Drayton Harmondsworth Stanwell East Bedfont Heston and Isleworth Feltham Hanworth and Twickenham in the county of Middlesex including not only the bed and waters of the Duke of Northumberland's River as commonly so called but also

A.D. 1930. — the beds and waters of the river Crane the Isleworth Mill River and the Mill Stream or New Cut (which New Cut is leasehold for a long term of years) and the other watercourses connected with such first mentioned river between Harmondsworth Point and the river Thames and including also certain strips or pieces of land adjoining certain parts of the said rivers or watercourses and also divers rights interests and easements in respect of the said rivers or watercourses or the control maintenance cleansing dredging repair or user thereof or of the beds waters or banks thereof or otherwise in relation thereto or in relation to some or one of the rivers or watercourses which lie northwards from Harmondsworth Point and from which the water or part of the water of the Duke of Northumberland's River is or may be derived and including also all grants reservations covenants agreements and provisions relating to the premises all of which said properties rights interests and easements are in this Act called "the Duke of Northumberland's River" :

And whereas it is expedient to empower the Duke to convey the Duke of Northumberland's River to the Council and to empower the Council to accept such conveyance and to enact the provisions in reference to the said river contained in this Act :

And whereas it is expedient to empower the Duke by agreement with the council to convey the school known as "the Green School" in the parish of Heston and Isleworth in the said county (comprising the school buildings and about two acres of land of which the Duke is or claims to be tenant for life in possession and estate owner subject to the existing lease for school purposes) to the governors of that school or to the Official Trustee of Charity Lands or to the Council :

And whereas it is expedient to make further provision for the regulation of trading in streets in the county and to confer powers upon the local authorities in relation thereto :

And whereas it is expedient to extend the period limited for the construction of certain works authorised by the Middlesex County Council Act 1925 :

And whereas it is expedient to empower the Council the London County Council the local authorities in the

[20 & 21 GEO. 5.] *Middlesex County* [Ch. clxvi.]
Council Act, 1930.

county and certain local authorities in the county of London to contribute to the expense incurred in the maintenance of Alexandra Park and Palace : A.D. 1930.
 —

And whereas by the Middlesex County Council Act 1921 as amended by the Middlesex and Surrey (Thames Bridges &c.) Act 1928 the Council are empowered to establish and maintain a superannuation fund for the granting of superannuation and other allowances to their officers and servants and it is expedient to amend the provisions of those Acts :

And whereas it is expedient to make further provision as in this Act contained in reference to the registration of employment agencies the sale of coke the audit of accounts in boroughs and the health local government and improvement of the county :

And whereas it is expedient that the other provisions contained in this Act be enacted :

And whereas the purposes of this Act cannot be effected without the authority of Parliament :

And whereas estimates have been prepared by the Council for the purposes hereinafter mentioned and such estimates are as follows :—

For the acquisition of easements and the	£
execution of the works referred to in the	
agreement set forth in the schedule to	
this Act - - - - -	33,000

And whereas the several works included in such estimates respectively are permanent works and it is expedient that the Council should be empowered to borrow money for those purposes as provided by this Act :

And whereas in relation to the promotion of the Bill for this Act the requirements of the Borough Funds Act 1872 so far as the same are applicable have been complied with by the Council :

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in

A.D. 1930. — this present Parliament assembled and by the authority of the same as follows :—

PART I.

PRELIMINARY.

Short title. 1. This Act may be cited as the Middlesex County Council Act 1930.

Division of Act into Parts. 2. This Act is divided into Parts as follows :—

Part I.—Preliminary.

Part II.—North Circular Road.

Part III.—Duke of Northumberland's River.

Part IV.—Regulation of street trading.

Part V.—Employment agencies.

Part VI.—Sale of coke &c.

Part VII.—Superannuation.

Part VIII.—Finance.

Part IX.—Miscellaneous provisions.

Interpretation. 3.—(1) In this Act the several words and expressions to which meanings are assigned by the Public Health Acts have the same respective meanings unless there be something in the subject or context repugnant to such construction.

(2) In this Act unless the subject or context otherwise requires—

(a) "The Council" means the county council of the administrative county of Middlesex;

(b) "The county" means the administrative county of Middlesex;

(c) "The Public Health Acts" means the Public Health Act 1875 and the Acts amending the same;

(d) "Statutory borrowing power" means any power whether or not coupled with a duty of borrowing or continuing on loan or re-borrowing money or of redeeming or paying off or creating or continuing payment of or in respect of any annuity rent-charge rent or other security representing or granted in lieu of consideration money for the time being existing under any Act of Parliament

A.D. 1930.

public or local passed or to be passed or under any Provisional Order confirmed by Act of Parliament passed or to be passed or under any order or sanction of any Government department made or given or to be made or given by authority of any Act of Parliament passed or to be passed;

- (e) "Statutory security" means any security in which trustees are for the time being by or under any Act of Parliament passed or to be passed authorised to invest trust money and any mortgage bond debenture debenture stock stock or other security authorised by or under any Act of Parliament passed or to be passed of any county council or municipal corporation or other local authority as defined by section 34 (Definitions) of the Local Loans Act 1875 but does not include annuities rentcharges or securities transferable by delivery or any securities of the Council;
- (f) "Daily penalty" means a penalty for each day on which an offence is continued after conviction thereof;
- (g) "The Act of 1894" "the Act of 1898" "the Act of 1906" "the Act of 1921" "the Act of 1925" and "the Act of 1928" mean respectively the Music and Dancing Licences (Middlesex) Act 1894 the Middlesex County Council Act 1898 the County Council of Middlesex (General Powers) Act 1906 the Middlesex County Council (General Powers) Act 1921 the Middlesex County Council Act 1925 and the Middlesex and Surrey (Thames Bridges &c.) Act 1928.

PART II.

NORTH CIRCULAR ROAD.

4. The agreement between the Grand Union Canal Company and the Council set forth in the schedule to this Act is hereby confirmed and made binding upon the parties thereto and effect may and shall be given thereto accordingly subject to such modifications (if any) as may be agreed between the parties in writing under their respective common seals and the Council on acquiring

Confirma-
tion of
agreement
with canal
company.

A.D. 1930. the easements referred to in the said agreement may execute the works therein referred to in accordance with the provisions thereof.

For protec-
tion of
Metro-
politan
Electric
Supply
Company
Limited.

5. For the protection of the Metropolitan Electric Supply Company Limited (in this section referred to as "the company") the following provisions shall unless otherwise agreed in writing between the company and the Council apply and have effect (that is to say) :—

- (1) Before commencing to construct the aqueduct referred to in the agreement set forth in the schedule to this Act or any works in connection therewith the Council shall at their own expense provide to the reasonable satisfaction of the company and in accordance with plans sections and particulars to be previously submitted to and reasonably approved by the company a temporary bridge for carrying the electric cables of the company laid in the towing-path of the Grand Union Canal and shall afford to the company all reasonable facilities for diverting temporarily on to the said bridge the said electric cables in such manner as not to interrupt the supply or transmission of electricity by means of the said cables :
- (2) The Council shall in constructing the said aqueduct at their own expense provide and at all times thereafter maintain to the reasonable satisfaction of the company and in accordance with plans sections and particulars to be previously submitted to and approved by the company sufficient and suitable accommodation for the said electric cables of the company and shall afford to the company all reasonable facilities for laying or placing in the accommodation so provided the said electric cables as diverted under the provisions of subsection (1) of this section :
- (3) The company shall at all times have free and uninterrupted access to the said temporary bridge and to the accommodation to be provided in the said aqueduct pursuant to subsection (2) of this section and be entitled to execute and do all such works and things as may be necessary

or convenient for inspecting maintaining repairing renewing or replacing the said electric cables as laid or placed in the said temporary bridge or in the said accommodation : A.D. 1930.

- (4) The Council shall on demand repay to the company the cost reasonably incurred by them in diverting the said electric cables on to the temporary bridge to be provided pursuant to subsection (1) of this section and in laying or placing the said cables in the accommodation to be provided pursuant to subsection (2) of this section :
- (5) If any difference shall arise under the provisions of this section between the company and the Council such difference shall be referred to and determined by an arbitrator to be agreed upon between them or failing such agreement to be appointed on the application of either party after notice in writing to the other of them by the President of the Institution of Civil Engineers and subject as aforesaid the provisions of the Arbitration Act 1889 shall apply to any such reference and determination.

PART III.

DUKE OF NORTHUMBERLAND'S RIVER.

6.—(1) The Duke may convey the Duke of North-
umberland's River to the Council and the Council may
accept a conveyance thereof either for or without any
consideration whatsoever and upon and subject to such
terms and conditions as may be agreed including if so
agreed any reservations to the Duke of any property
rights or interests and the taking over by the Council as
from such date as may be agreed of the said river and the
management thereof and of all or any obligations and
liabilities in connection therewith as may be so agreed and
the giving by the Council to the Duke of a complete or
other indemnity as may be agreed in the matter the
giving by either party of such covenants in respect of any
reserved property rights or interests or otherwise as may
be agreed and the Council and the Duke may make
agreements for the said conveyance and any other things
hereby authorised.

Conveyance
of river to
Council.

A.D. 1930.

— Upon the completion of the said conveyance the Council shall stand possessed of and may exercise all the rights powers and authorities now vested in the Duke and so conveyed to the Council and the Council shall be subject to the liabilities subject to which the property conveyed was held by the Duke immediately before the said conveyance and subject to which the property was so conveyed.

(2) Upon the completion of the said conveyance the following provisions shall be repealed :—

The Act of 1898—

Section 5 (For protection of Duke of Northumberland's River and Curtiss & Harvey);

Section 19 (For protection of Earl Percy).

The Act of 1906—

Section 16 (For protection of Duke of Northumberland).

The Act of 1921—

Section 12 (Amendment of Act of 1898 as to the Duke of Northumberland's River);

Section 18 (For protection of Twickenham Urban District Council).

But the provision following shall thereupon have effect unless and until it may be otherwise agreed (namely) :—

In respect and for the protection of the park and ornamental gardens attached to the mansion of Syon House and of those parts of the Duke of Northumberland's River (or its banks) which are situate in such park or gardens or elsewhere in the parish of Isleworth northwards of the road called Mill Plat or Mill Plat Avenue the Duke shall have all such rights and the Council shall be subject to all such restrictions as if section 16 of the Act of 1906 and section 12 of the Act of 1921 had not been repealed.

(3) Upon completion of the said conveyance the Council may by agreement with any persons having any rights or interests in the Duke of Northumberland's River or the waters thereof or any rights of using such water acquire such rights and interests.

(4) Notwithstanding anything in this section contained and notwithstanding any conveyance or agreement made or entered into under the provisions of this section the Council shall not without the previous consent in writing of the Commissioners of His Majesty's Works and Public Buildings (which consent may be signified under the hand of the secretary of the said commissioners and may be given upon such terms and conditions as the said commissioners may think fit) exercise any of the powers conferred upon the Council by the said Acts of 1898 1906 and 1921 and by this Act so as in any way to diminish or increase the natural flow of the water down the Queen's or Longford River.

A.D. 1930.
—

7. For the protection of the mayor aldermen and burgesses of the borough of Twickenham (hereinafter in this section referred to as "the corporation") the following provisions shall apply and have effect unless otherwise agreed in writing between the corporation and the Council (that is to say) :—

For protec-
tion of
Twicken-
ham Corpo-
ration.

(1) The Council shall not exercise in respect of the Duke of Northumberland's River any of the powers conferred upon them by the Acts of 1898 1906 and 1921 and by this Act so as in any way to diminish the natural flow of the water down the river Crane below the confluence of the Duke of Northumberland's River with the said river Crane :

(2) Nothing contained in this Part of this Act or in the section of this Act of which the marginal note is "Improvement of streams" shall prejudice alter or affect any right title or interest of the corporation in the river Crane or prevent the corporation from placing and maintaining for any purposes of the corporation including the provision of bathing facilities any weir or other work in any part of the said river Crane belonging to or vested in or adjacent to any lands belonging to or vested in the corporation but any works placed and maintained by the corporation as aforesaid shall not except with the consent of the Council (which shall not be unreasonably withheld) be so placed and maintained as to obstruct

A.D. 1930.

the flow of the said river Crane and any question which might arise as to whether such consent is unreasonably withheld shall be referred to the Ministry of Health for determination.

For protec-
tion of
Emily
Katherine
Cole.

8. For the protection of Emily Katherine Cole or other the owner or owners for the time being of the lands forming the Cole Park Estate or any part or parts thereof in the parishes of Twickenham and Isleworth (in this section referred to as "the owner") the following provisions shall apply and have effect unless otherwise agreed in writing between the owner and the Council (that is to say):—

- (1) The Council shall not exercise in respect of the Duke of Northumberland's River any of the powers conferred upon them by the Acts of 1898 1906 and 1921 and by this Act so as in any way to diminish the natural flow of the water down the river Crane below the weir at the Mereway :
- (2) Nothing contained in this Part of this Act shall prejudice alter or affect any right title or interest of the owner in the river Crane or in the beds banks and waters thereof or in the strips or pieces of land adjoining the same :
- (3) The Council shall not in regard to the river Crane where it passes through or abuts upon the lands of the owner execute the works referred to in the section of this Act of which the marginal note is "Improvement of streams" except with the owner's consent in writing which consent shall not be unreasonably withheld and any question which may arise as to whether such consent is unreasonably withheld shall be referred to arbitration under the Arbitration Act 1889 the arbitrator unless otherwise agreed being appointed by the Minister of Agriculture and Fisheries.

For protec-
tion of
Samuel
Kidd & Co.
Ltd.

9. Nothing in this Part of this Act or done thereunder shall in any way prejudice or affect the estate rights privileges or interests of Samuel Kidd & Company Limited or other the owner or owners for the time being of the Isleworth Manor Mill in the urban district of Heston and Isleworth under or by virtue of an indenture of

conveyance dated the twenty-sixth day of December one thousand eight hundred and seventy-six and made between the most noble Algernon George Duke of Northumberland and the Right Honourable Henry George Percy commonly called Earl Percy the eldest son of the said Duke of the one part and William Podger of the other part and the said company shall continue to exercise and enjoy in relation to the Duke of Northumberland's River all such powers rights and privileges as they could have exercised and enjoyed if this Part of this Act had not been enacted.

A.D. 1930.
—

PART IV.

REGULATION OF STREET TRADING.

10.—(1) In this Part of this Act “the local authority” means the council of any borough or urban district in the county which shall have passed a resolution that the provisions of this Part of this Act shall be in operation in such borough or district and “the district” means such borough or district.

Application
of Part IV.

(2) The provisions of this Part of this Act shall come into operation in any borough or urban district in the county upon the passing of a resolution to that effect by the council of such borough or district on such date as may be named in the resolution not being less than two months after the date on which it is passed and that date is in this Part of this Act referred to as “the prescribed date.”

(3) Not less than six weeks before the provisions of this Part of this Act come into operation in any borough or district the local authority shall give notice thereof by advertisement in a local newspaper circulating in such borough or district and shall inform the Secretary of State thereof.

11. On and after the prescribed date it shall not be lawful for any person to sell or expose or offer for sale any article or thing from or upon any barrow cart stall or other receptacle occupying a stationary position at a place in the carriageway or footway of any street without a licence from the local authority authorising him so to do :

Licensing of
street
traders.

Provided that this section shall not apply to any person selling or exposing or offering for sale any article

A.D. 1930. or thing from or upon any barrow cart stall or other receptacle which he ordinarily moves from place to place in pursuit of and while conducting his trade.

Applications
for licences
&c.

12.—(1) A person requiring a licence or the renewal of a licence under this Part of this Act shall make application in writing to the local authority and shall in such application state his full name and address and the nature of the articles and things which he intends to sell or expose or offer for sale under the authority of the licence if granted the place (if any) at which the articles or things will be stored by him before any sale or exposure or offer for sale and the street or streets or area in which he intends so to sell or expose or offer for sale.

In the case of any person intending to sell or expose or offer for sale as aforesaid any article or thing on or within one month after the prescribed date such application shall be made not later than one month before that date.

(2) The local authority shall as soon as reasonably practicable after the receipt of an application under the provisions of this section grant or renew a licence to the applicant under and for the purposes of this Part of this Act :

Provided that the local authority may refuse to grant or renew a licence or may at any time revoke or vary a licence granted to any person if—

- (a) on account of misconduct or for any other sufficient reason he is in their opinion unsuitable to hold such licence ; or
- (b) the space available in the street or streets or area to which the application relates or which is or are prescribed by the licence is at the date of such application or becomes at any time after the grant of such licence insufficient for the selling or exposing or offering for sale by the applicant or licensee of any articles or things under the authority of a licence under this Part of this Act or of the particular articles or things referred to in the application or licence without causing undue interference with or inconvenience to the traffic in such street or streets or area ; or

(c) the street or streets to which the application relates is or are not a street or streets ordinarily prescribed by the local authority in licences granted by them pursuant to this Part of this Act; or

(d) the applicant or licensee persistently neglects or fails to pay any charges due from him under this Part of this Act or the byelaws made thereunder;

but shall not refuse to grant or renew a licence or revoke a licence on the ground only that the applicant, for or holder of the licence does not reside in the district:

Provided also that the operation of this subsection shall be subject to the provisions of the section of this Act of which the marginal note is "For preventing interference with traffic."

(3) Any such licence shall be in a form prescribed by the Secretary of State and may prescribe—

(a) the street or streets or area in which and the position or place in any such street or area at which the licensee may sell or expose or offer for sale articles or things as aforesaid;

(b) the class or classes of articles or things which may be sold or exposed or offered for sale under such licence Provided that no article of food shall be classed with any other article or thing;

(c) the day or days and the time or times on and at or during which the licensee may sell or expose or offer for sale articles or things as aforesaid; and

(d) the number of barrows carts stalls or other receptacles which may be used for those purposes under the authority of the licence;

and on any occasion of the renewal of a licence the local authority may vary such prescriptions.

(4) The local authority shall not refuse to renew or shall not revoke or vary any such licence unless they shall have given to the person applying for such renewal or holding the licence proposed to be revoked or varied not less than seven days' previous notice in writing that objections have been or will be taken to

A.D. 1930. — such renewal or that a revocation or variation is proposed and unless on written application made within three days after the receipt of such notice they have afforded to such person an opportunity of being heard against such refusal revocation or variation.

For pre-
venting in-
terference
with traffic

13.—(1) Where it appears to the Secretary of State after consultation with the local authority that the presence of persons licensed under this Part of this Act causes or is calculated to cause undue interference with or inconvenience to traffic in any street or part of a street in the district he may by order prohibit the selling or exposing or offering for sale by persons licensed or thereafter to be licensed under this Part of this Act of any article or thing in any such street or part of a street except in such numbers and under such conditions (if any) as may be prescribed in the order.

(2) Where the Secretary of State proposes to make an order under this section he shall cause notice of the proposal to be published in at least one newspaper circulating within the district and shall also cause a copy of such notice to be posted for not less than fourteen consecutive days in some conspicuous position in the street or part of a street to which the proposal relates and every such notice shall—

(a) specify the street or part of the street to which the proposal relates; and

(b) notify the time (which shall not be less than twenty-eight days) within which any objection to the proposal shall be sent in writing to the Secretary of State.

(3) Before carrying into effect any proposal of which notice is required by this section to be given the Secretary of State shall consider any objection to the proposal which is sent to him in writing within the time fixed in that behalf and shall if necessary cause a public local inquiry to be held:

Provided that where more than twenty persons affected by the proposal have duly presented objections thereto and have not withdrawn the same the Secretary of State shall before making the order cause a public local inquiry to be held with reference to the proposal.

(4) A person appointed by the Secretary of State to hold a public local inquiry under the provisions of

this section shall for the purposes of the inquiry have in relation to witnesses and their examination the production of papers and accounts and the inspection of places and matters required to be inspected similar powers to those which poor law inspectors have under the Poor Law Act 1930 for the purposes of that Act. A.D. 1930.

(5) Where any such order as aforesaid is made and is in force no licence shall be granted or renewed under this Part of this Act contrary to the order and any such licence to the extent to which it contravenes the order shall be inoperative :

Provided that any such order shall not affect the operation of any licence in force at the date on which the order comes into force.

(6) Any refusal of the local authority to grant or renew a licence in pursuance of the provisions of the preceding subsection shall not be a ground for an appeal under subsection (2) of the section of this Act of which the marginal note is "Appeals against refusal or revocation of licences."

(7) The reasonable costs incurred by the Secretary of State in relation to any such public local inquiry (including the remuneration of any person employed by him for the purpose of the inquiry) shall be paid by the local authority and the Secretary of State may certify the amount of the costs incurred and any sums so certified shall be a debt due to the Crown from the local authority.

14. Any person making application for the grant or renewal of a licence under this Part of this Act shall when making the same pay to the local authority in respect of such application a fee of five shillings. Fees on licences.

15. Every licence granted or renewed under this Part of this Act shall unless revoked be valid for a period of one year or in the case of any licence granted or renewed otherwise than at any annual meeting fixed by the local authority for the purpose of considering applications under this Part of this Act for a period expiring on the thirty-first day of March next after the date of such grant or renewal. Duration of licences.

A.D. 1930.

—
Appeals
against
refusal or
revocation
of licences.

16.—(1) If the local authority refuse to grant or renew a licence or revoke or vary a licence under this Part of this Act they shall if required by the applicant or holder (as the case may be) send or deliver to him within seven days of the receipt of such requirement particulars in writing of the ground or grounds for such refusal revocation or variation.

(2) Any person aggrieved by such refusal revocation or variation or by any prescription made by the local authority under subsection (3) of the section of this Act of which the marginal note is "Applications for licences &c." may appeal to a court of summary jurisdiction provided that such appeal is made within fourteen days from the date on which such refusal revocation variation or prescription is notified to him and that notice in writing of such appeal is sent to the local authority not less than seven days before the hearing thereof and the court may make such order as it thinks fit and may award costs.

Byelaws as
to trading
under
licences.

17.—(1) The local authority shall in conformity with draft byelaws to be framed by the Secretary of State and so soon as may be practicable after the framing thereof make byelaws relating to the following matters (that is to say):—

- (a) The days on which and the times during which articles or things may be sold or exposed or offered for sale under the authority of a licence granted or renewed under this Part of this Act;
- (b) The deposit and removal of refuse;
- (c) The allocation maximum dimensions and arrangement of barrows carts stalls and other receptacles;
- (d) The storage and the sanitary supervision (while at the place of intended sale or exposure or offering for sale) of articles or things intended to be sold or exposed or offered for sale under the authority of the licence;
- (e) Any other conditions under which articles or things may be sold or exposed or offered for sale under the authority of the licence;

(f) The amount of the charges which may be made by the local authority; A.D. 1930.

(g) Penalties for the breach of any such byelaws :

Provided that the local authority may in making such byelaws make such modifications (if any) in the said draft byelaws as the Secretary of State may allow to meet the special circumstances existing in the district :

Provided also that before framing any such draft byelaw as aforesaid relating to the storage and sanitary supervision of articles of food or confirming any byelaw containing any modification of a draft byelaw relating to such matters the Secretary of State shall consult the Minister of Health.

(2) In the determination of the amount of the charges which may be made by the local authority regard shall be had to the cost incurred by them in the administration of the provisions of this Part of this Act and in the cleansing of and the removal of refuse from the streets or parts of streets in which persons to whom licences are granted are permitted to sell or expose or offer for sale articles and things.

(3) Before any byelaws made by the local authority under this section are confirmed by the Secretary of State the local authority shall take such steps as may be prescribed in rules to be made by the Secretary of State for affording to any recognised organisation representative of street traders and to any street trader affected by such byelaws and not being a member of any such organisation an opportunity to make representations with regard thereto.

(4) All byelaws made by the local authority under this section shall be made under and according to the provisions contained in sections 182 to 186 of the Public Health Act 1875 so far as they relate to byelaws made by an urban sanitary authority except that as regards confirmation of byelaws and inquiries in relation thereto the Secretary of State shall be substituted for the Minister of Health.

18. The local authority may make and recover from persons licensed by them charges not exceeding the amount of the charges prescribed by byelaws made under this Act. Power to make charges,

A.D. 1930.

Power to
licensees to
employ
other
persons.Penalties
for offences
in respect of
trading
required to
be licensed.

19. Any person holding a licence under this Part of this Act may employ any other person to assist him in the conduct of his business without any further licence under this Part of this Act being required.

20.—(1) Every person who or whose assistant on or after the prescribed date without a licence under this Part of this Act authorising him so to do or contrary to any prescription of such licence sells or exposes or offers for sale any article or thing from or upon any barrow cart stall or other receptacle occupying a stationary position at a place in the carriageway or footway of any street in the district or obtains a licence or the renewal of a licence by wilful misrepresentation shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings.

(2) Provided that a person who has appealed to a court of summary jurisdiction (except against a refusal to grant a new licence) in accordance with the provisions of the section of this Act of which the marginal note is "Appeals against refusal or revocation of licences" or to a court of quarter sessions in accordance with the section of this Act of which the marginal note is "Appeals to quarter sessions" shall not be liable to any proceedings under this section for the offence of selling or exposing or offering for sale in the street or streets or area specified in his application any article or thing as aforesaid without a licence until such appeal has been heard and determined or has been abandoned.

Saving for
holders of
pedlars' cer-
tificates and
hawkers'
licences.

21. Nothing in this Part of this Act shall restrict the right of any person holding a pedlar's certificate or a hawker's licence to carry on the business of a pedlar or of a hawker (as the case may be) in accordance with such certificate or licence.

Saving for
London
Traffic Act
1924 and
other enact-
ments.

22. Nothing in this Part of this Act shall exempt any person from or shall alter or affect the operation of any of the provisions of the London Traffic Act 1924 or of any enactment relating to obstruction of traffic in highways.

Saving for
sales in legal
markets or
fairs.

23. In the case of any market or fair held in pursuance of any statute royal licence royal charter or letters patent or as of right from time immemorial nothing in this Part of this Act shall affect the sale or exposure for

sale by any person who has paid a toll to or shall be acting under the written authority of a person holding or entitled to hold such market or fair or to receive tolls in respect of sale made or stalls or stands occupied in such market or fair of goods in any such market or fair.

A.D. 1930.

24. No matter or thing done or contract entered into by the local authority nor any matter or thing done by the clerk or by any member or officer of the local authority or by any person whomsoever acting under the direction of the local authority shall if the matter or thing be done or the contract be entered into bona fide for the purpose of executing this Part of this Act subject them or any of them personally to any action liability claim or demand whatsoever and any expense incurred by a local authority or the clerk member officer or person acting as last aforesaid shall be borne and repaid out of any of the funds at the disposal of the local authority.

Persons acting in execution of this Part of Act not to be personally liable.

25. Save as otherwise expressly provided all offences against this Part of this Act or any byelaw made thereunder and all fines forfeitures penalties costs charges and expenses imposed or recoverable thereunder or under any such byelaw may be prosecuted and recovered in a summary manner :

Recovery of penalties expenses &c.

Provided that costs charges and expenses except such as are recoverable along with a fine shall not be recovered as penalties but may be recovered summarily as civil debts.

26. Save as otherwise expressly provided all informations and complaints under or for the breach of any of the provisions of this Part of this Act or of any byelaw made thereunder may be laid and made by any officer of the local authority duly authorised in that behalf or by the clerk of such authority or by any officer of the metropolitan police and the local authority may appear before any court in any legal proceedings under this Part of this Act by the clerk or any officer authorised generally by resolution of the local authority.

Informations by whom to be laid.

27. If the provisions of this Part of this Act are brought into operation in the urban district of Hendon by a resolution of the council of that district the provisions of Part VII (Street trading) of the Hendon Urban District

Amendment of Hendon Urban District Council Act 1929.

A.D. 1930. Council Act 1929 shall cease to have effect on the prescribed date and any byelaws made and licences granted under the said Part of the last mentioned Act shall be deemed to have been made and granted under this Act.

PART V.

EMPLOYMENT AGENCIES.

Date of
commence-
ment of
Part V:

28. This Part of this Act shall come into force on the first day of January nineteen hundred and thirty-one or such later date as the Council may by resolution passed within three months after the passing of this Act prescribe. The date on which this Part of this Act shall so come into force is in this Part of this Act referred to as "the prescribed date."

Repeal of
provisions
of Act of
1906.

29.—(1) Part IV (Employment agencies) of the Act of 1906 as from the prescribed date is hereby repealed.

(2) All byelaws and conditions made or imposed under the repealed provisions and now in force shall have the same validity and effect as if they had been made or imposed under this Part of this Act.

Definition of
"employ-
ment
agency."

30. In this Part of this Act the expression "employment agency" means any agency or registry in the county carried on or represented as being or intended to be carried on (whether for the purpose of gain or reward or not) for or in connection with the employment of persons in any capacity:

Provided that the following shall not be deemed to be employment agencies within the meaning of this Part of this Act:—

- (a) any employment agency conducted by or under the direction and supervision of the Ministry of Labour under the Labour Exchanges Act 1909 or any other Act of Parliament; or
- (b) any juvenile employment bureau conducted by the local education authority under the Education Act 1921; or
- (c) any employment agency which is carried on exclusively for the purpose of obtaining employment for—

- (i) persons formerly members of His Majesty's naval military or air forces; or

(ii) persons released from a prison or Borstal institution or from a reformatory or industrial school; A.D. 1930.

and which is certified at the prescribed date and from time to time thereafter by the Admiralty or the Army Council or the Air Council or the Secretary of State (as the case may be) to be properly conducted; or

- (d) any duly constituted religious or charitable society or body operating throughout Great Britain to the main objects of which the provision of situations or employment is merely subsidiary Any question whether a society or body is a society or body within the meaning of this paragraph shall be determined by the Charity Commissioners.

31. From and after the prescribed date no person shall carry on an employment agency without a licence from the Council authorising him so to do. Employment agencies to be licensed.

32.—(1) A person requiring a licence or the renewal of a licence under this Part of this Act shall make application in writing to the Council and shall in the application state— Applications for licences.

- (a) his full name;
- (b) his age and nationality;
- (c) his private address or if the application be made by or on behalf of a company society association or body the registered or principal office (if any) of such company society association or body and so far as may reasonably be required the names and private addresses of the persons directly or indirectly responsible for the management of such company society association or body;
- (d) the name under which and the address at which the employment agency is carried on or proposed to be carried on;
- (e) the nature of the employment agency;
- (f) whether and if so to what extent he is interested in any other employment agency; and
- (g) such further information (if any) as the Council may reasonably require with respect to the person or premises to be licensed.

A.D. 1930.

(2) Every application for a licence to carry on an employment agency in existence at the passing of this Act shall be made within one month after the date or (if more than one) the latest date of publication of the advertisements giving public notice of the effect of this Part of this Act under the section of this Act of which the marginal note is "Notice of Part V of Act."

(3) Subject to the foregoing provisions of this section the Council may make such regulations as they think fit as to the manner in which and the dates at which applications for a licence or the renewal of a licence under this Part of this Act shall be made.

Council to
grant
licences.

33.—(1) The Council shall as soon as reasonably practicable after the receipt of an application under this Part of this Act (and not later in the case of an application under subsection (2) of the last preceding section of this Act than the prescribed date) grant or renew a licence to the applicant to carry on an employment agency of the description and in the name and at the address specified in the application :

Provided that the Council may refuse to grant or renew a licence or may revoke a licence granted—

- (a) to any person under the age of twenty-one years ;
or
- (b) to any person who may be an unsuitable person to hold such licence ; or
- (c) in respect of any premises which are unsuitable for the purposes of an employment agency ; or
- (d) in respect of any employment agency which has been or is being improperly conducted.

(2) The Council shall not refuse to renew nor shall they revoke any such licence unless they shall have given to the person applying for such renewal or holding the licence proposed to be revoked not less than seven days' previous notice that objections have been or will be taken to such renewal or that a revocation is proposed and unless on written application made within three days after the receipt of such notice they shall have afforded to the applicant an opportunity of being heard against such refusal or revocation.

(3) Any person making application under the last preceding section of this Act shall when making the same

pay to the Council in respect of the grant or renewal of a licence as aforesaid such fee as the Council may fix not exceeding— A.D. 1930.
 —

	£	s.	d.
(a) in respect of the grant of a licence -	2	2	0
(b) in respect of the renewal of a licence	1	1	0

and the fees paid on any application for the grant or renewal of a licence may be retained by the Council whether such licence is or is not granted or renewed.

(4) Every such licence shall (unless revoked) be valid for a period of one year except that a licence granted or renewed otherwise than at any annual meeting fixed by the Council for the purpose of considering applications under this Part of this Act shall only be valid until the thirty-first day of December next after the date of such grant or renewal.

(5) If the council refuse to grant or renew a licence or revoke a licence under this Part of this Act they shall if required by the applicant or holder (as the case may be) send or deliver to him within seven days of the receipt of such requirement particulars in writing of the ground or grounds for such refusal or revocation.

(6) Any person aggrieved by such refusal or revocation may appeal to a court of summary jurisdiction provided that the appeal is made within fourteen days from the date of such refusal or revocation and that notice in writing of the appeal is sent to the Council within twenty-four hours after the entry of the appeal.

(7) On any such appeal the court may after considering any representations made by the Council by order either confirm the refusal or revocation or allow the appeal and direct the Council to grant or renew a licence and the Council shall comply with any such direction.

(8) The costs of any appeal under this section shall be paid in such manner and by such parties to the appeal as the court may direct.

34.—(1) The Council may make byelaws requiring any person holding a licence under this Part of this Act to keep (at his option) either books cards or forms showing the business conducted by him so far as it relates to his employment agency and prescribing entries to be made in connection with such business in such books Byelaws as to employment agencies.

A.D. 1930. or on such cards or forms (as the case may be) and for the prevention of fraud and immorality in the conduct of employment agencies and for regulating any premises used for the purposes of or in connection with such agencies.

(2) Sections 182 to 186 of the Public Health Act 1875 so far as they relate to byelaws made by an urban sanitary authority shall apply to byelaws under this section as if the Council were a local authority within the meaning of those sections but as regards confirmation of byelaws and inquiries in relation thereto the Secretary of State shall be substituted for the Minister of Health.

(3) Every person holding a licence under this Part of this Act shall keep exhibited in a suitable place (to be approved by the Council) in the premises to which the licence relates a copy of the byelaws made by the Council under this section.

Powers of
entry and
inspection
by Council.

35. Any officer or other person duly authorised by the Council in that behalf may—

- (a) enter the premises specified in any licence or application under this Part of this Act or any premises which are used or which such officer or person has reasonable cause to believe are used for the purposes of or in connection with an employment agency; and
- (b) inspect such premises and the books cards or forms kept in connection with the employment agency carried on at those premises.

Penalties..

36.—(1) Every person who on or after the prescribed date—

- (a) carries on an employment agency without a licence under this Part of this Act or otherwise than in accordance with the terms and conditions of such a licence or obtains a licence or the renewal of a licence by wilful misrepresentation or by wilfully omitting to give any particulars which are required by this Part of this Act to be given; or
- (b) refuses to permit any officer or person duly authorised by the Council to enter or inspect any such premises as are referred to in the section of this Act of which the marginal note

is " Powers of entry and inspection by Council " A.D. 1930.
or the books cards or forms kept in connection
with the employment agency carried on therein
or obstructs any such officer or person in the
execution of this Part of this Act; or

- (c) acts or offends against any byelaw made under
this Part of this Act or of any of the provisions
of this Part of this Act for the contravention
of which no penalty is by this section speci-
fically provided—

shall (subject to the provisions of subsection (3) of this
section) be liable in respect of an offence under para-
graph (a) of this subsection to a penalty not exceeding
fifty pounds and to a daily penalty not exceeding twenty
pounds and in respect of an offence under paragraph (b)
or paragraph (c) of this subsection to a penalty not
exceeding five pounds and to a daily penalty not exceed-
ing forty shillings and in respect of any conviction for
an offence under this Part of this Act the court may
(in lieu of or in addition to imposing a penalty) make
an order revoking the licence (if any).

(2) Any person aggrieved by any order under this
section may appeal therefrom to the next practicable
court of quarter sessions.

(3) No person who shall have appealed to a court
of summary jurisdiction or the court of quarter sessions
in accordance with the provisions of this Part of this
Act against a refusal by the Council to grant a licence
to any person making application under subsection (2)
of the section of this Act of which the marginal note
is "Applications for licences " or to renew a licence or
against any revocation under this section of a licence
shall be liable to any proceedings under this section
for the offence of carrying on an employment agency
without a licence under this Part of this Act until such
appeal shall have been heard and determined or shall
have been abandoned.

37. Where any company registered under the Companies Act 1929 or any Act amending that Act or under any earlier Act relating to the registration of companies commits any offence for which a penalty is provided by this Part of this Act proceedings may

Directors of
companies
to be liable
for penal-
ties under
Part V.

A.D. 1930. — be taken in respect of such offence against all or any of the directors and managers of such company as well as or instead of against the company and each such director and manager shall be liable on conviction to the like penalty as if he or they were the person or persons committing the offence unless he proves to the satisfaction of the court—

- (a) that the act which constituted the offence took place without his knowledge consent or connivance; and
- (b) that he was not guilty of any negligence in regard to securing the proper execution of this Part of this Act.

Notice of
Part V of
Act.

38.—(1) The Council shall prior to the prescribed date cause public notice to be given in two or more newspapers circulating in the county of the effect of this Part of this Act and of the date when it will come into force.

(2) Copies of newspapers containing the notice shall be sufficient evidence that the provisions of this section have been complied with.

PART VI.

SALE OF COKE &C.

Application
to sale of
coke of
Weights and
Measures
Act 1889.

39. The provisions of sections 20 to 29 of the Weights and Measures Act 1889 and of any byelaws made by the Council thereunder (which provisions and byelaws relate to the sale of coal) shall also apply to the sale of coke within the county.

Penalty on
fraudulent
sale.

40. If any seller of coke or any person in charge of any vehicle from which coke is being sold or offered or exposed for sale wilfully makes any false statement as to the weight of the coke or wilfully increases such weight by damping such coke or wilfully does any other act by which the purchaser of the coke shall be defrauded he shall be liable for every such offence on the first occasion to a penalty not exceeding five pounds and on the second or any subsequent occasion to a penalty not exceeding ten pounds.

41. Any inspector of weights and measures may with the consent of the Council prosecute before a court of summary jurisdiction any proceedings under or in pursuance of this Part of this Act. A.D. 1930.
—
Proceedings under Part VI of Act.

42. The provisions of this Part of this Act relating to coke shall apply also to any solid fuel derived from coal or of which coal or coke is a constituent as if it were coke. Application of Part VI.

43.—(1) Public notice of the provisions of this Part of this Act shall be given forthwith after the passing of this Act by advertisement in two newspapers published or circulating in the county. Notice to be given of Part VI.

(2) Copies of the newspapers containing the advertisement shall be sufficient evidence that the provisions of this section have been complied with.

PART VII.

SUPERANNUATION.

44. Part IV (Superannuation fund) of the Act of 1921 sections 65 to 72 of the Act of 1928 and this Part of this Act shall be construed as one and may be cited as the Middlesex County Council (Superannuation) Acts 1921 to 1930. Citation and construction of Part VII.

45.—(1) Subject to the provisions of this section the superannuation allowance to which an officer or servant becomes entitled after the passing of this Act shall in lieu of the allowance stated in section 25 of the Act of 1921 be as follows:— Scale of allowances.

After ten years' service an annual allowance of ten eightieths of the average amount of his salary or wages during the five years ending on the quarter day which immediately precedes the day on which the officer or servant ceases to hold his office or employment together with a cash payment calculated at the rate of ten thirtieths of such average amount of his salary or wages as aforesaid;

After eleven years' service an annual allowance of eleven eightieths of such average amount together with a cash payment calculated at the rate of eleven thirtieths of such average amount of his salary or wages as aforesaid;

A.D. 1930.

And so on the amount of such annual allowance to be increased by one eightieth for every year of service and the amount of the cash payment by one thirtieth for every year of service but so that the maximum annual allowance shall be forty eightieths and the maximum cash payment forty-five thirtieths.

(2) The foregoing provisions of this section shall apply also to the non-contributing service of those officers and servants to whom subsection (1) of section 68 of the Act of 1928 applies.

(3) In the case of an officer or servant to whom subsection (2) of the said section 68 applies the superannuation allowances in respect of his non-contributing service shall be calculated at rates one-half of the rates stated in subsection (1) of this section in lieu of the rates referred to in paragraph (a) of subsection (2) of the said section 68 :

Provided that in any case in which the Council by resolution so determine the rates of superannuation allowances may be increased to rates not exceeding those stated in subsection (1) of this section but the amounts by which any such allowances may be increased shall be paid as provided by paragraph (b) of subsection (2) of the said section 68.

Payments
in case of
death.

46.—(1) In the case of an officer or servant to whom the last preceding section applies and who after having contributed to the superannuation fund at the rate of five per centum of his salary or wages for not less than five years (including therein any period before the passing of this Act) dies before becoming entitled to or receiving superannuation allowances under the said section the sum to be paid by the Council to his legal personal representative out of the superannuation fund under subsection (1) of section 30 (Return of contributions in case of death) of the Act of 1921 shall not be less than a sum calculated at the rate of one thirtieth of the average amount of his salary or wages during the five years immediately preceding his death for each year of his service with a minimum of thirty thirtieths.

(2) In any case in which any officer or servant to whom the last preceding section applies shall die after

he has become entitled to superannuation allowances thereunder and before he shall have received by way of superannuation allowances an aggregate amount equal to the sum which would have been payable to his legal personal representative under subsection (1) of this section had he died on the last day of his service with the Council the sum to be paid by the Council to his legal personal representative out of the superannuation fund under subsection (2) of the said section 30 shall not be less than the difference between the total amount which he has received by way of superannuation allowances and the amount which he would have received under subsection (1) of this section had he died on the last day of his service with the Council.

A.D. 1930.
—

47.—(1) The foregoing provisions of this Part of this Act shall not apply to any officer or servant in the service of the Council at the time of the passing of this Act who is either not contributing to the superannuation fund or whose contributions thereto are at a rate less than five per centum of his salary or wages unless such officer or servant is not more than fifty-five years of age at the date of the passing of this Act and within six months thereafter gives notice in writing to the Council undertaking to contribute to the superannuation fund as from that date at the rate of five per centum of his salary or wages in lieu of any other contributions he was then required to make.

Exclusion of certain officers and servants.

(2) The foregoing provisions of this Part of this Act shall not apply to any officer or servant in the service of the Council at the date of the passing of this Act who is contributing to the superannuation fund at the rate of five per centum of his salary or wages if within twelve months after the passing of this Act he gives notice in writing to the Council that he prefers on retirement to be granted a superannuation allowance on the scale stated in section 25 of the Act of 1921.

48. In calculating the period of service of any officer or servant to whom this Part of this Act applies any part of a year exceeding six months shall be reckoned as a year.

As to part of a year.

49.—(1) Subject to the provisions of this section persons employed in the following capacities shall as from the passing of this Act be deemed to be officers

Application of Act of 1921 to certain

A.D. 1930. or servants and to be in service office or employment
— within the meaning of section 22 (Definitions) of the
persons employed in Act of 1921 and that Act as amended by the Act of
education. 1928 and this Act shall apply to all such persons
(namely) :—

- (a) Supplementary teachers employed in non-pro-
vided schools in the part of the county for
which the Council are for the time being the
local education authority for the purposes of
elementary education;
- (b) Caretakers and cleaners employed in whole-time
service in non-provided schools in the part of
the county for which the Council are for the
time being the local education authority for
the purposes of elementary education;
- (c) All persons employed in whole-time service in the
endowed secondary schools in the county wholly
or partly maintained by the Council other than
teachers.

(2) Notwithstanding anything to the contrary in this
or any other Act the following provisions shall apply to
persons referred to in subsection (1) of this section :—

- (a) No such person entering the service after the
passing of this Act shall be deemed to be an
officer or servant within the meaning of the Act
of 1921 unless he is approved by the Council
after medical examination by a medical officer
appointed by them;
- (b) All questions as to the grant of superannuation
allowance and gratuities to any of such persons
shall be under the sole control of the Council;
- (c) Where a superannuation allowance or gratuity is
granted to any of such persons the governors or
managers or other persons having control of the
school at which he was employed shall not make
any payment to him out of any funds to which
the Council make any grant or contribution.

(3) The superannuation allowance to any person
referred to in this section shall be calculated in respect
of non-contributing service in the manner prescribed by
subsection (3) of the section of this Act whereof the
marginal note is "Scale of allowances."

50. There shall be paid out of the county fund and carried and credited to the superannuation fund in each year such additional amount as the actuary appointed in accordance with section 38 of the Act of 1921 shall as soon as may be after the passing of this Act certify as necessary in consequence of the provisions contained in this Part of this Act. A.D. 1930.
 —
 Additional payments into superannuation fund.

PART VIII.

FINANCE.

51.—(1) The Council may (in addition to the other sums which they are authorised to raise) borrow or raise at interest for and in connection with the purposes mentioned in the first column of the following table any sums of money not exceeding in the whole the respective sums mentioned in the second column thereof and shall repay all moneys so borrowed within the respective periods mentioned in the third column thereof (namely):— Power to borrow.

1	2	3
Purpose.	Amount.	Period for repayment.
(a) The acquisition of easements and the execution of the works referred to in the agreement set forth in the schedule to this Act.	£ 33,000	Thirty years from the date or dates of borrowing.
(b) The payment of the costs charges and expenses of this Act.	The sum requisite.	Five years from the passing of this Act.

(2) (a) The Council may also with the consent of the Minister of Health borrow such further money as may be necessary for any purposes of this Act.

(b) Any money borrowed under this subsection shall be repaid within such period as may be prescribed by the said Minister.

(3) Any money to be borrowed under this Act shall be borrowed under and subject to the provisions (so far as applicable) of section 69 of the Local Government Act 1888 but the consent of the Minister of Health shall not be required to the borrowing or to the period of repayment of moneys borrowed under this section except to the extent provided by subsection (2) of this section.

A.D. 1930.

—
Consoli-
dated loans
fund.

52.—(1) Notwithstanding anything contained in any other Act or order on and after the thirty-first day of March nineteen hundred and thirty-one the Council may (if they think fit) establish a fund to be called “ the consolidated loans fund ” to which shall be paid—

- (a) all moneys borrowed by the Council whether by issue of bonds stock or other security together with any moneys borrowed without security in connection with the exercise of any statutory borrowing power;
- (b) all moneys of a capital nature received by the Council whether from the sale of capital assets or otherwise except such as are applied by the Council with due authority to another capital purpose; and
- (c) the appropriate sums provided in each year out of other funds of the Council to comply with the terms and conditions as to repayment attaching to their several borrowing powers or otherwise provided for the repayment of debt:

And there shall also be carried to the credit of the consolidated loans fund the unapplied balances of all moneys so borrowed or received and of all sums provided by the Council as aforesaid before the date on which the consolidated loans fund is established.

(2) The moneys of the consolidated loans fund shall be used or applied by the Council—

- (a) in the redemption of stock or any other securities issued by the Council the purchase of bonds or stock for extinction or the repayment of any moneys borrowed by the Council; and
- (b) in the exercise of any statutory borrowing power by transfer of the required amount to the appropriate fund and account of the Council:

And the moneys of the consolidated loans fund not used or applied in these ways or about to be so used or applied within a reasonable period shall be invested in statutory securities and the sums realised by the sale of such securities shall be repaid on receipt to the consolidated loans fund and the moneys of the consolidated loans fund including the accumulations arising from the investments thereof shall not except with the consent of the Minister

of Health be used or applied otherwise than as provided in this subsection. A.D. 1930.

(3) There shall also be transferred to the consolidated loans fund such sums as are necessary to meet the interest charges and the financing and other revenue expenses connected with the management of that fund and separate accounts shall be kept of these sums and their application.

(4) The Council may pay into the consolidated loans fund any moneys forming part of any reserve renewals depreciation contingent insurance superannuation or other similar fund (hereinafter referred to as "the lending fund") and not for the time being required and such moneys shall be deemed to be moneys borrowed by the Council within the meaning of subsection (1) of this section and shall be used accordingly subject to the following conditions:—

(a) The moneys so used shall be repaid to the lending fund as and when required for meeting the obligations for which the said fund was established; and

(b) Interest shall be paid to the lending fund on any moneys so used and for the time being not repaid at such rate per centum per annum as may be determined by the Council to be equal as nearly as may be to the average rate of interest payable by the Council on their current borrowings.

(5) Subject to any priority existing at the passing of this Act all bonds stock of and loans to the Council and the dividends and interest thereon shall be charged indifferently on all the revenues of the Council and shall rank equally one with another without any priority whatsoever.

(6) Save as in this section expressly provided all the obligations of the Council to the holders of bonds stock or other securities of the Council shall continue in force.

(7) Nothing in this section shall apply to moneys borrowed from the Public Works Loan Commissioners.

(8) The powers conferred by this section shall not be put into operation by the Council except in accordance with a scheme to be approved by the Minister of Health and such scheme may make provision for any matters incidental to the establishment and administration of the consolidated loans fund.

A.D. 1930.

PART IX.

MISCELLANEOUS PROVISIONS.

Audit of
accounts in
boroughs.

53.—(1) The provisions of this section shall come into operation in any borough in the county on the first day of April following the passing of a resolution by the council of the borough adopting the said provisions :

Provided that in the case of a borough constituted after the passing of this Act if the resolution adopting the said provisions be passed at any time within three months after the first election of the council for the borough the said provisions shall be deemed to have come into operation on the day on which the charter incorporating the inhabitants of the borough came into operation.

(2) In this section—

“ the borough ” means any borough in which the provisions of this section are brought into operation ;

“ the corporation ” means the mayor aldermen and burgesses of such borough ; and

“ the appointed day ” means in reference to any borough the day on which the said provisions come into operation therein.

(3) From and after the appointed day sections 25 26 and 27 of the Municipal Corporations Act 1882 and section 246 of the Public Health Act 1875 shall cease to apply to any accounts of the corporation or of the treasurer of the borough or of the officers of the corporation and all accounts of the corporation and of the treasurer and the officers of the corporation under any public or private Act of Parliament or otherwise relating to matters dealt with by the corporation in any capacity and including the accounts of any joint committee and of the officers of any joint committee appointed by the corporation with the council of any county borough or district or any parish council shall be audited by a district auditor appointed by the Ministry of Health in like manner as accounts of an urban authority and their officers are audited under sections 247 and 250 of the Public Health Act 1875 and those sections and all enactments amending them or applying to audit by district auditors including the enactments imposing

penalties and providing for the recovery of sums as well as all enactments relating to matters incidental to or consequential upon any such accounts or audit shall apply in like manner as if so far as they relate to an audit of the accounts of an urban authority and the officers of that authority they were herein re-enacted with the necessary modifications and accordingly all burgesses of the borough and all ratepayers and owners of property in the borough shall have the like rights and there shall be the same appeal as in the case of that audit. A.D. 1930.

(4) Nothing in subsection (3) of this section shall apply to the audit of the accounts of the corporation for the financial year ending immediately before the appointed day except in the case of a borough referred to in the proviso to subsection (1) of this section.

(5) The corporation may out of their general rate fund—

- (a) pay reasonable subscriptions whether annually or otherwise to the funds of any association of municipal corporations or other local authorities or their officers formed for the purpose of consultation as to their common interests and the discussion of matters relating to local government and any reasonable expenses of the attendance of any members or officers of the corporation not exceeding in any case four at conferences or meetings of the said associations or any of them and of purchasing reports of the proceedings of any such conferences or meetings;
- (b) pay the reasonable expenses of the corporation in providing public entertainments on the occasion of public ceremony or rejoicing and in the reception and entertainment of distinguished persons residing in or visiting the borough;
- (c) pay the reasonable expenses of the corporation in connection with the presentation of the freedom of the borough to persons whom the corporation may resolve to admit as honorary freemen;
- (d) pay the reasonable expenses in connection with the attendance of members of the fire brigade of the corporation at meetings and competitions of fire brigades.

A.D. 1930.

Mainten-
ance of
Alexandra
Palace.**54.**—(1) The following bodies (namely):—

- (a) the Council;
- (b) the London County Council;
- (c) the council of any county district in the county;
- (d) the council of any metropolitan borough on the north side of the Thames;

may contribute such sums annually or otherwise as they think fit towards the cost of maintenance improvement and repair of Alexandra Park and Palace as defined in the Alexandra Park and Palace (Public Purposes) Act 1900.

(2) Expenditure incurred under this section shall be defrayed—

- (a) in the case of the London County Council as payments for general county purposes within the meaning of the Local Government Act 1888;
- (b) in the case of the council of any county district as expenses incurred in the execution of the Public Health Acts;
- (c) in the case of the council of a metropolitan borough out of the general rate authorised to be levied by such council.

(3) The council of any such county district or metropolitan borough may borrow money for the purposes of this section to which capital is properly applicable—

- (a) in the case of a council of any county district under and in accordance with the provisions of the Public Health Acts;
- (b) in the case of a council of a metropolitan borough under and in accordance with the provisions of the Metropolis Management Act 1855 as amended by subsequent Acts.

Combined
drains.

55.—(1) If it appears to the council of any county district within the county (in this section called “the local authority”) that two or more houses within the district of the local authority may be drained more economically or advantageously in combination than separately and a sewer of sufficient size already exists or is about to be constructed within one hundred feet of any part of the premises the local authority

A.D. 1930.

may when the drains of such houses are first laid order that such houses be drained by a combined drain to be constructed either by the local authority if they so decide or by the owner or owners in such manner as the local authority shall direct and the costs and expenses of such combined drain and the repair and maintenance thereof shall be apportioned between the owners of such houses in such manner as the local authority shall determine and if such drain is constructed by the local authority such costs and expenses may after demand by the local authority be recovered from such owners summarily as a civil debt subject to a right of appeal under subsection (4) of this section.

(2) Any combined drain constructed in pursuance of this section or the sections repealed by this section shall for the purposes of the Public Health Acts be deemed to be a drain and not a sewer.

(3) Provided that the local authority shall not except by agreement with the owner exercise the powers conferred by this section in respect of any house for the drainage of which plans shall have been previously approved by them.

(4) Any person aggrieved by the amount of any costs and expenses proposed to be recovered by the local authority under this section or the amount to be borne and paid by him may appeal to a court of summary jurisdiction provided that such appeal be made within twenty-eight days from the date of the service of notice by the local authority intimating the amount payable or their apportionment thereof On any such appeal the court may make such order in the premises and on such terms and conditions as to the court may seem just The costs of any such appeal shall be paid in such manner and by such parties to the appeal as the court may direct.

(5) Section 43 (Council may order houses &c. to be drained by a combined operation) and section 44 (Amendment of section 19 of Public Health Acts Amendment Act 1890) of the Wood Green Urban District Council Act 1903 are hereby repealed without prejudice to anything done or suffered thereunder.

56.—(1) A noise nuisance shall be liable to be Noise dealt with in accordance with the provisions relating to nuisances of the Public Health Act 1875 :

A.D. 1930.

Provided that no complaint shall be made to a justice under section 105 of the said Act unless it is signed by not less than three householders or occupiers of premises within the hearing of the noise nuisance complained of.

(2) For the purposes of this section a noise nuisance shall be deemed to exist where any person makes or continues or causes to be made or continued any excessive or unreasonable or unnecessary noise and where such noise—

(a) is injurious or dangerous to health; and

(b) is capable of being prevented or mitigated having due regard to all the circumstances of the case:

Provided that if the noise is occasioned in the course of any trade business or occupation it shall be a good defence that the best practicable means of preventing or mitigating it having regard to the cost have been adopted.

(3) The provisions of this section shall not extend or apply to the carrying on of an undertaking authorised by Act of Parliament or by an Order confirmed by or having the force of an Act of Parliament.

Improve-
ment of
streams.

57.—(1) For the purpose of improving the flow of water in any stream as defined in the Act of 1921 the Council may remove scour and take away any shoal mudbank or other accumulation or any weir in any such stream and also shorten any bend or remove any angle in the course of any such stream and construct and maintain weirs therein.

(2) The Council may enter upon any lands for the purpose of exercising the powers of this section but before entering they shall give not less than fourteen days' notice to the owner or occupier thereof and if before the expiration of fourteen days after the service of any such notice any such owner or occupier give notice to the Council objecting to the exercise of such powers in reference to the land owned or occupied by him such powers shall not be exercised except with the consent of the Minister of Agriculture and Fisheries.

(3) Where any person sustains any damage by reason of the exercise of any of the powers of this

section in relation to any matter as to which he is not himself in default compensation shall be made to such person by the Council and if any dispute shall arise as to the fact of damage or amount of compensation the matter in dispute shall in default of agreement be determined by and compensation (if any) shall be recovered in a court of summary jurisdiction. A.D. 1930.

(4) Nothing in this section contained shall authorise the exercise with respect to the Queen's or Longford River of any powers conferred by this section without the previous consent in writing of the Commissioners of His Majesty's Works and Public Buildings (which may be signified under the hand of their secretary) upon such terms and conditions as they shall think fit and save as aforesaid nothing in this section shall have any application to or shall affect such river or any land or stream vested in or in the occupation or under the management of the said commissioners or shall divest take away prejudice diminish or alter any estate right privilege power or authority now or from time to time vested in or enjoyed or exerciseable by or on behalf of the King's Majesty His heirs or successors or the Commissioners of His Majesty's Works and Public Buildings.

58. Nothing contained in the section of this Act of which the marginal note is "Improvement of streams" shall take away lessen alter or prejudicially affect any of the rights remedies powers authorities privileges exemptions and benefits vested in or granted or reserved to or now enjoyed or lawfully exercised by the Metropolitan Water Board in respect of any of their lands property streams channels cuts watercourses drains canals or reservoirs and bridges and coverings thereover or prevent them from discharging water into any stream as defined in the Act of 1921 or ditch into which they are at the passing of this Act entitled to discharge water but such rights remedies powers authorities privileges exemptions and benefits shall be and remain in full force and effect in the same manner to all intents and purposes as if this Act had not been passed. For protection of Metropolitan Water Board.

59. The Council shall execute the works referred to in the section of this Act of which the marginal note is "Improvement of streams" where any stream passes For protection of railway companies.

A.D. 1930. — under through by the side of or in proximity to any railways lands or works of any railway company (in this section referred to as "the company") subject to the following conditions:—

- (1) The Council shall not commence to execute any such works as aforesaid until after fourteen days' previous notice in writing together with plans and drawings of the works intended to be executed shall have been delivered to the principal or chief engineer for the time being of the company and if the said engineer shall by writing under his hand signify his disapproval of such works within fourteen days after such plans and drawings have been delivered to him then the Council shall not commence to execute any such works unless and until plans and drawings thereof shall have been examined and approved of by an engineer to be appointed as hereinafter provided;

If by reason of the works referred to in the said section of this Act the company shall in carrying out works in connection with their railways be put to any additional cost or expense the reasonable amount of such additional cost or expense shall be repaid to the company by the Council:

- (2) All such works shall be done under the superintendence (if the same be given) and to the reasonable satisfaction of such principal or chief engineer and shall be executed so as not to cause any injury to the said railways or works lands or property and if any injury shall arise to the said railways works lands or property the Council shall make compensation to the company in respect of such injury:
- (3) The Council shall bear and on demand pay to the company the reasonable expense of the employment by them during the execution of the said works hereinbefore referred to of a sufficient number of inspectors or watchmen for watching the said railways and railway works with reference to and during the execution and maintenance of the said intended

works and for preventing as far as may be all interference obstruction danger and accident from any of the operations or from the acts or defaults of any person or persons in the employ of the Council with reference thereto or otherwise : A.D. 1930.

- (4) Any dispute or difference which may arise between the company and the Council with reference to the provisions of this section or in any wise arising thereout or as to any works to be carried out in pursuance thereof shall be settled by arbitration by an engineer to be appointed (in the absence of agreement) by the President of the Institution of Civil Engineers on the application of either the company or the Council and the Arbitration Act 1889 shall apply to such arbitration :
- (5) The powers of entry conferred by the section of this Act of which the marginal note is "Improvement of streams" shall in the case of any railways lands premises works or buildings belonging to or vested in the company only be exercised by the Council at reasonable times.

60. The Council shall not in regard to the stream which passes through Hilly Fields Park in the urban district of Enfield execute the works referred to in the section of this Act of which the marginal note is "Improvement of streams" except with the consent in writing of the urban district council of Enfield which consent shall not be unreasonably withheld and any question which may arise as to whether such consent is unreasonably withheld shall be referred to the Ministry of Health for determination. For protection of urban district council of Enfield.

61. Section 40 (Saving jurisdiction and powers of the county council of Middlesex) of the Lee Conservancy Act 1900 shall cease to have effect and the Lee Conservancy Board shall have the jurisdiction and powers which they would have had if that section had not been enacted but nothing in this section shall prejudice or affect the powers of the Council. Repeal of section 40 of Lee Conservancy Act 1900.

A.D. 1930.

Erection of
hoards on
county
roads.

62. Section 34 of the Public Health Acts Amendment Act 1890 shall extend to the whole of the county in reference to the county roads therein and for that purpose the Council shall be deemed to be an urban authority who have adopted that section and shall in reference to county roads be substituted for the urban district council.

Mental
hospitals
and certified
institutions
superannua-
tion fund.

63.—(1) At any time after the passing of this Act the Council may if they think fit make a scheme for the formation and administration of a mental hospitals and certified institutions superannuation fund for the payment of the superannuation allowances to officers and servants employed by any visiting committee of the Council or by the Council or any committee thereof and to whom the Asylums Officers' Superannuation Act 1909 or the Asylums and Certified Institutions (Officers' Pensions) Act 1918 apply.

(2) Any such scheme may—

- (a) Provide for the payment into the superannuation fund of the percentage amounts of salaries or wages and emoluments deducted under the said Acts and of sums received from other authorities in respect of proportions of pensions payable by them and of the dividends and interest arising out of the investment or use of the fund;
- (b) Provide for the periodical investigation of the fund by an actuary and for the payment into the fund of such sum as may be required in order that the fund may be solvent;
- (c) Contain such incidental consequential or supplemental provisions as may appear necessary or proper.

Fees for
music and
dancing
licences.

64.—(1) The fee to be paid for the registration of a licence granted under the Act of 1894 shall be one pound instead of the fee mentioned in subsection (1) of section 2 of that Act or in the case of the grant of a licence for any less period than one year five shillings for every month or period less than one month so however that the aggregate of fees payable in any year shall not exceed one pound :

Provided that where a licence is granted under the Act of 1894 in respect of premises for which a licence

is in force under the Cinematograph Act 1909 and where a fee of one pound has been paid in respect of the last-mentioned licence the fee to be paid for the registration of the licence under the Act of 1894 shall be ten shillings. A.D. 1930.

(2) On the transfer of a licence granted under the Act of 1894 the fee of five shillings shall be paid by the person to whom the licence is transferred :

Provided that such fee shall in no case be payable by any transferee in respect of any licence granted for the purpose of a charitable or other like entertainment.

65.—(1) Every lease granted by the Council under section 20 of the Act of 1925 shall be for a term not exceeding forty-two years and the provisions of section 23 of the Act of 1925 shall apply during the continuance of any such lease. Period of lease of light railways and tramways.

(2) Subsection (2) of the said section 20 is hereby repealed.

66. The period limited by section 17 of the Act of 1925 for the completion of the tramways authorised by that Act as extended by section 74 of the Act of 1928 is hereby further extended until the first day of October nineteen hundred and thirty-five. Extension of time for construction of tramways.

67. In its application to the Council section 71 of the Housing Town Planning &c. Act 1909 shall enable the Council (if they think fit) instead of establishing a public health and housing committee to establish a public health committee and a housing committee and in the event of the Council establishing those committees the following provisions shall apply :— Public health and housing committees.

(1) All matters which under subsection (2) of section 111 of the Housing Act 1925 are to stand referred to the public health and housing committee of the Council and all other matters relating to the exercise and performance by the Council of their powers and duties as respects the housing of the working classes (except the power of raising a rate or borrowing money) shall stand referred to the housing committee :

(2) All other matters which if this section had not been enacted would have stood referred to the public health and housing committee shall be referred to the public health committee :

A.D. 1930.

(3) The Council may if they think fit refer to either of the said committees any of their powers and duties other than those which under any enactment are referred to another committee.

Conveyance
of Isleworth
Green
School.

68. The Duke may by agreement with the Council convey the Green School in the parish of Heston and Isleworth referred to in the preamble to this Act to the governors of that school or to the Official Trustee of Charity Lands or to the Council for such consideration (if any) and upon and subject to such terms and conditions as may be agreed.

Appeals to
quarter
sessions.

69. Any person deeming himself aggrieved by any order made by a court of summary jurisdiction under the provisions of this Act may appeal to the next practicable court of quarter sessions under and according to the provisions of the Summary Jurisdiction Acts and in regard to any order made by a court of summary jurisdiction under those provisions the Council or the local authority concerned may in like manner appeal.

Further
powers of
entry.

70. The provisions of section 21 of the Act of 1928 shall apply to any lands which the Council are by any Act or by any order thereunder authorised to acquire compulsorily for or in connection with the purposes of construction or improvement of roads.

For protec-
tion of Port
of London
Authority.

71. Nothing in or done under this Act shall extend to interfere with take away abridge or prejudicially affect any right power authority jurisdiction or privilege of the Port of London Authority.

Application
of existing
enactments.

72. The following enactments shall extend and apply to the purposes of this Act as if with any necessary modifications they were re-enacted in this Act (namely):—

The Act of 1921—

Section 65 (Application of penalties);

Section 66 (Recovery of penalties &c.);

Section 67 (Expenses of execution of Act).

The Act of 1928—

Section 82 (Authentication and service of notices &c.);

Section 83 (Inquiries by Minister of Health).

[20 & 21 GEO. 5.] *Middlesex County
Council Act, 1930.*

[Ch. clxvi.]

73. The costs charges and expenses of and incidental to preparing applying for and obtaining this Act as taxed by the taxing officer of one of the Houses of Parliament shall be paid by the Council out of the county fund or out of moneys to be borrowed under this Act.

A.D. 1930.

—
Costs of
Act.

A.D. 1930.

The SCHEDULE referred to in the
foregoing Act.

AGREEMENT WITH THE GRAND UNION CANAL
COMPANY.

AN AGREEMENT made the twelfth day of December 1929 between THE GRAND UNION CANAL COMPANY (hereinafter referred to as "the Canal Company") of the one part and the COUNTY COUNCIL OF THE ADMINISTRATIVE COUNTY OF MIDDLESEX (hereinafter referred to as "the County Council") of the other part.

WHEREAS the Canal Company are the owners of a canal known as the Paddington Arm of the Grand Union Canal :

And whereas the County Council are in course of constructing a certain road known as the North Circular Road in pursuance of their powers under the Development and Road Improvement Funds Acts 1909 and 1910 the Unemployment (Relief Works) Act 1920 and of all other powers enabling them in that behalf :

And whereas the said road crosses the said canal at Stonebridge Park in the borough of Ealing as shown by a pink colour on the plan annexed to this agreement :

And whereas at the point of the said crossing the said canal is on an embankment and in order to effect the said crossing it will be necessary to carry the said canal over the said road by means of an aqueduct :

And whereas the Canal Company are willing to give to the County Council facilities for the construction of the said road under the said canal and to grant to the County Council an easement over the lands of the Canal Company which are shown by pink blue and green colours respectively on the said plan for the construction and maintenance thereon of the said road and the training wing walls and abutments and the embankments and slopes in connection with the said aqueduct :

Now it is hereby agreed between the Canal Company and the County Council as follows :—

1. The County Council shall at their own expense apply for and endeavour to obtain in the session of 1930 an Act of Parliament confirming this agreement and empowering them to acquire the easements referred to in clause 2 hereof to carry the said canal

A.D. 1930.

over the said road in accordance with the provisions hereinafter contained and to execute all necessary or convenient works in connection therewith. The Canal Company will if required so to do by the County Council furnish at the expense of the County Council any necessary or desirable assistance in connection with such application and at the like expense by their officers or otherwise give evidence before the committee.

2. In consideration of the sum of £100 to be paid by the County Council to the Canal Company forthwith upon the Royal Assent being obtained to the Act of Parliament referred to in clause 1 hereof the Canal Company shall subject to the provisions hereinafter contained permit the County Council to construct and maintain on the lands of the Canal Company shown by pink blue and green colours respectively the said road and the training walls and abutments and the embankments and slopes in connection with the aqueduct referred to in clause 3 hereof.

3. The Canal Company shall subject to the provisions hereinafter contained permit the County Council at their own expense to construct an aqueduct for the purpose of carrying the said canal over the said road together with the ancillary works hereinafter referred to in the manner hereinafter mentioned or in such other manner as shall be agreed between the parties.

4. The said aqueduct shall be constructed in ferro-concrete and the side walls and bottom thereof shall be faced with blue bricks and the whole shall be enclosed in bitumen sheeting to guard against possible leakage. The finished width of the walled waterway of the said aqueduct shall be 50 feet and the depth thereof at weir level shall be 5 feet 10½ inches.

5. The County Council shall provide for and construct on the south-west side of the said aqueduct a towing-path 8 feet in width so as to be continuous with the existing towing-path at either end thereof. The County Council shall further provide for and construct on the north-east side of the said aqueduct a cart road 12 feet in width between the parapet and the said canal so as to give access to the Canal Company's bank at each end of the said aqueduct. The County Council shall also construct on each side of the canal at each end of the said aqueduct a length of 60 feet of deep walling.

6. The centre pier of the aqueduct shall be made solid to a height of not less than 6 feet above the road level and a substantial granite kerb shall be fixed on each side of the pier. Provision shall be made by the County Council for drawing off the water from the aqueduct if required by stop grooves inserted in chases formed in the abutments of the bridges at Tiggerty and Twyford with a sluice discharging into the river Brent.

7. The whole of the said works (hereinafter called "the works") shall be constructed to the satisfaction of the Canal

A.D. 1930. Company and in accordance with detailed drawings and specifications based on plan No. 4013 revised May 1926 to be approved by them before the works are commenced. The whole of the works shall be completed with all reasonable dispatch and the County Council on completion shall remove all materials and things which shall have been used in connection with the works and reinstate and make good all damage caused to the Canal Company's property.

8. During the construction of the works the County Council shall to the satisfaction of the Canal Company provide and maintain without interruption a waterway available for canal traffic of a clear width of at least 20 feet and shall also to the satisfaction of the Canal Company provide and maintain a temporary towing-path available for use without interruption and (so far as practicable) a temporary cart road corresponding to the cart road provided for in clause 5. Provided nevertheless that such cart road may be put out of use while that side of the aqueduct is being constructed. The County Council shall also to the satisfaction of the Canal Company dredge the bed of the said canal on both sides of the said aqueduct for a sufficient length to enable loaded boats and barges to lead into the temporary narrowings at all times during the construction of the works.

9. The County Council shall at their own expense at all times during the construction of the works cause the same to be fenced and guarded and shall at the like expense cause sufficient lights for the warning of canal traffic and of persons using the towing-path or the said cart road to be set up and kept burning from sunset to sunrise every night during the construction of the works and employ a sufficient number of night watchmen to attend to such lights and to warn such traffic and such persons.

10. The County Council shall at all times keep the Canal Company effectually indemnified against all actions suits proceedings expenses losses costs damages charges claims and demands in any way arising out of or by reason or on account of anything done or omitted to be done by the County Council in respect of the works or any part thereof or in any way arising out of or by reason or on account of the Canal Company having entered into these presents or the Canal Company or their engineer having approved or assented to any works done or proposed to be done by the County Council under these presents.

11. The County Council shall not break up injure or in any way disturb the existing embankments on either side of the said aqueduct for the purpose of excavating for the said road until the said aqueduct is completed to the satisfaction of the Canal Company and proved to be watertight by such tests as the Canal Company may require.

A.D. 1930.

12. The County Council shall at all times and at their own expense repair the works and maintain the same in good and proper repair order and condition in every respect to the satisfaction of the Canal Company so as effectually to relieve the Canal Company from any statutory or other liability on their part to repair or maintain the same.

13. If either during the construction of the works or at any time thereafter any interference is caused with the traffic on the said canal in any way arising out of or by reason or on account of anything done or omitted to be done by the County Council in respect of the works or any part thereof or in any way arising out of or by reason or on account of the Canal Company having entered into these presents then and in every such case the County Council shall pay to the Canal Company as liquidated damages the sum of £100 for the first 24 hours or part thereof and the sum of £200 for every subsequent 24 hours or part thereof during which such interference shall continue.

14. If either during the construction of the works or at any time thereafter there shall be any leakage or loss of water from the said canal in any way arising out of or by reason or on account of anything done or omitted to be done by the County Council in respect of the works or any part thereof or in any way arising out of or by reason or on account of the Canal Company having entered into these presents then and in every such case the County Council shall pay to the Canal Company the sum of 6d. for every 1,000 gallons of water lost by reason of such leakage or loss and the County Council upon notice thereof shall immediately at their own expense and to the satisfaction of the Canal Company do all things necessary effectually and permanently to stop such leakage or loss. Provided that if any such leakage or loss shall occur the Canal Company may in case of emergency begin any work and take any precautions they think necessary in order to repair mitigate or stop the same and the County Council shall repay to the Canal Company all costs charges or expenses to which they may be put thereby. Provided further that if the County Council shall fail after such notice as aforesaid to fulfil in any respect their obligations under this clause the Canal Company may do the necessary work and the County Council shall repay the Canal Company all costs charges or expenses to which they may be put thereby.

15. A certificate in writing under the hand of the manager of the Canal Company that any works have or have not been completed repaired or maintained to his satisfaction or that the traffic on the said canal has been interfered with and the period of such interference for the purposes of clause 13 hereof or as to the quantity of water lost by leakage or from any other cause

A.D. 1930. — for the purposes of clause 14 hereof or as to the amount of any costs charges or expenses to be repaid by the County Council to the Canal Company under the said clause 14 shall (unless varied as hereinafter provided) be conclusive and binding upon the parties hereto.

16. The County Council shall on demand pay to the Canal Company all costs charges or expenses incurred by the Canal Company in respect of any examination or preparation of plans or specifications or in respect of any work of superintendence or inspection under this agreement to such amount as shall be certified by the Canal Company's manager whose certificate (unless varied as hereinafter provided) shall be conclusive and binding upon the parties hereto.

17. The Canal Company shall on request furnish to the County Council particulars of the matters on which any certificate given by the manager of the Canal Company under clause 15 or clause 16 hereof is based and provide the County Council with reasonable means for verifying the same and if it shall appear by agreement between the Canal Company and the County Council or (in default of agreement) by an award made under clause 18 hereof that the certificate ought to be varied it shall be varied accordingly.

18. If at any time hereafter any dispute difference or question shall arise between the parties to this agreement as to the meaning or construction of this agreement or as to any act or thing to be made or done by either of such parties in pursuance hereof or in regard to the rights or liabilities of either of the parties hereto under this agreement the same shall be referred to the arbitration of one person to be appointed in default of agreement by the President for the time being of the Institution of Civil Engineers.

19. This agreement is made subject to such alterations as Parliament may think fit to make therein but in the event of either House of Parliament making any material alteration therein which is not acceptable to either party such party may withdraw from this agreement and the Bill for the said Act or so much thereof as relates to the carrying into effect of this agreement shall either then be withdrawn or the County Council may make such alteration therein with a view to carrying out the works as may be permitted with liberty to the Canal Company to take such steps thereon as they may be advised.

20. The County Council shall pay all the costs and charges in connection with the preparation and execution of this agreement and a duplicate thereof.

[20 & 21 GEO. 5.] *Middlesex County*
Council Act, 1930.

[Ch. clxvi.]

In witness whereof the parties hereto have caused their
respective common seals to be hereunto affixed the day and year
first before written. A.D. 1930.

THE COMMON SEAL of the GRAND UNION CANAL }
COMPANY was hereunto affixed in the presence }
of—

L.S.

L. BYGRAVE
Secretary.

THE COMMON SEAL of the COUNTY COUNCIL of the }
ADMINISTRATIVE COUNTY of MIDDLESEX was }
hereunto affixed in the presence of—

L.S.

C. PINKHAM
Chairman of the County Council.

E. S. W. HART
Clerk of the County Council.

Printed by EYRE and SPOTTISWOODE, LTD.,
FOR
WILLIAM RICHARD CODLING, Esq., C.B., C.V.O., C.B.E., the King's Printer of
Acts of Parliament.

To be purchased directly from H.M. STATIONERY OFFICE at the following addresses :
Adastral House, Kingsway, London, W.C.2; 120, George Street, Edinburgh;
York Street, Manchester; 1, St. Andrew's Crescent, Cardiff;
15, Donegall Square West, Belfast;
or through any Bookseller.

